



## **AUTHORIZED USE AND NON-DISCLOSURE AGREEMENT**

### **REQUEST FOR PROPOSAL (RFP) N62742-26-R-1304, FY24 MILCON P-859, CONSOLIDATED HEADQUARTERS PHII, U.S. NAVSUPPACT, MCB FINEGAYAN, GUAM**

It is understood and agreed to that the United States Government, as represented by the Department of the Navy, Naval Facilities Engineering Systems Command, Pacific (NAVFAC Pacific), hereinafter referred to as "Discloser", is providing certain information that is and must be kept confidential and protected from unauthorized use, publication, distribution or disclosure. To ensure the protection of such information, hereinafter referred to as "Restricted Use Information", and to preserve any confidentiality necessary under Federal laws, it is agreed that:

1. The **Restricted Use Information** (hereinafter called "**SPECS AND DRAWINGS**") to be disclosed includes the following:

- NAVFAC Specifications for FY24 MILCON P-859, CONSOLIDATED HEADQUARTERS PHII, U.S. NAVSUPPACT, MCB FINEGAYAN, GUAM (WON 1737353)
- NAVFAC Drawings for FY24 MILCON P-859, CONSOLIDATED HEADQUARTERS PHII, U.S. NAVSUPPACT, MCB FINEGAYAN, GUAM (WON 1737353)

2. The Recipient shall limit disclosure of the **SPECS AND DRAWINGS** referenced herein within its own organization to its directors, officers, partners, members, and/or employees, collectively referred to as its affiliate(s), having a need to know, and who have also submitted a completed "Authorized Use and Non-Disclosure Agreement" and "U.S. Citizen Certification" to the Contracting Office. The **SPECS AND DRAWINGS** are considered Critical Infrastructure Security Information pursuant to 10 U.S.C. 130(e), *Federal Contract Information* in accordance with Federal Acquisition Regulations (FAR) 4.19, and *Covered Defense Information* in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 204.73, and is marked "CUI". The **SPECS AND DRAWINGS** remain the property of the United States.

Do not disclose the **SPECS AND DRAWINGS** under any circumstances, except as expressly authorized herein. The Contracting Officer is the only person who has the authority to disclose *Federal Contract Information*. The Recipient and affiliates shall not disclose the **SPECS AND DRAWINGS** obtained from the Discloser and shall refer any legal demand for the **SPECS AND DRAWINGS** to the contracting office. A knowing failure to comply with the requirements of FAR 4.19 and DFARS 204.73 (prohibition on disclosing *FCI/CDI*) may subject the Recipient to penalties and administrative action in accordance with Federal law, regulation, the FAR, DFARS, etc.

Recipient shall not make any use of the above referenced **SPECS AND DRAWINGS**, except as follows:

- ☒ Limited to proposal preparation purposes only unless awarded a contract/subcontract as a result of this solicitation.
- ☐ Limited to the purpose(s) specified in the Contracting Officer's prior written approval made IAW Recipient's DFARS 252.204-7000 request (a copy of which is included in the contract files and incorporated by reference herein).
- ☐ Other: \_\_\_\_\_

3. This Agreement imposes no obligation upon Recipient with respect to any business confidential or proprietary information (a) that was in Recipient's possession before receipt from Discloser; (b) is or becomes a matter of public knowledge through no fault, action or inaction of Recipient; (c) is rightfully received by Recipient from a third party not

owing a duty of confidentiality to the Discloser; (d) is disclosed without a duty of confidentiality to a third party by, or with the authorization of, Discloser; or (e) is governed by another agreement or contract with the United States Government which specifically addresses use, disclosure or handling of the above-referenced Restricted Use Information.

3. This Agreement states the entire agreement on behalf of the Recipient concerning the disclosure of the **SPECS AND DRAWINGS**. Any addition or modification to this Agreement must be made in writing and signed by the parties.

4. If any of the provisions of this Agreement are found to be unenforceable, the remainder shall be enforced as fully as possible and the unenforceable provision(s) shall be deemed modified to the limited extent required to permit enforcement of the Agreement as a whole.

5. Recipient agrees to destroy restricted use information and derivative works produced using restricted use information comprising **SPECS AND DRAWINGS** if not awarded a contract or subcontract as a result of this solicitation. A “derivative work,” that is, a work that is based on (or derived from) one or more already existing works, in this case restricted use information referenced herein. Upon request by Discloser, Recipient shall certify in writing or by email that the restricted use information has been destroyed within ten days from such a request.

6. The recipient hereby certifies that the **SPECS AND DRAWINGS** and derivative works produced using information comprising **SPECS AND DRAWINGS** shall be handled in compliance with the substantive safeguarding and incident reporting requirements of DFARS 252.204-7008 and DFARS 252.204-7012 at all times during proposal preparation and until the **SPECS AND DRAWINGS** and derivative works comprising **SPECS AND DRAWINGS** are destroyed.

7. The duties and obligations arising from this Agreement equally applies to derivative works created using restricted use information provided herein.

8. These provisions are consistent with and do not supersede, conflict with, or otherwise alter Recipient’s obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General or the Office of Special Counsel of a violation of any law, rule, or regulation; or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by controlling Executive orders and statutory provisions are incorporated into this agreement and are controlling.

WHEREFORE, the Recipient acknowledges that it has read and understand this Agreement and voluntarily accept the duties and obligations set forth herein.

**Recipient of Restricted Use Information:**

\_\_\_\_\_  
Recipient Name

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Company Name

\_\_\_\_\_  
Title

\_\_\_\_\_  
Date